

Tentative Rulings for September 15, 2026

Department 6

**To request oral argument, you must notify Judicial Secretary
Crystal Marias at (760) 904-5722
and inform all other counsel no later than 4:30 p.m.**

This court follows California Rules of Court, Rule 3.1308 (a) (1) for tentative rulings (see Riverside Superior Court Local Rule 3316). Tentative Rulings for each law & motion matter are posted on the Internet by 3:00 p.m. on the court day immediately before the hearing at [Riverside Superior Court-Tentative Rulings](#). If you do not have Internet access, you may obtain the tentative ruling by telephone at (760) 904-5722.

To request oral argument, no later than 4:30 p.m. on the court day before the hearing you must (1) notify the judicial secretary for Department 6 at (760) 904-5722 and (2) inform all other parties of the request and of their need to appear remotely, as stated below. If no request for oral argument is made by 4:30 p.m., the tentative ruling **will become the final ruling** on the matter effective the date of the hearing. **UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.**

For information and instructions on remote appearances via **ZOOM**, visit the court's website at [Riverside Superior Court-Remote Appearances](#)

You may also make a Telephonic Appearance: On the day of the hearing, call into one of the below listed phone numbers, and input the meeting number (followed by #):

- Call-in Numbers: 1-833-568-8864 (Toll Free), 1-669-254-5252,
1-669-216-1590, 1-551-285-1373 or 1-646-828-7666
- Meeting Number: **161 830 3643**

Please **MUTE** your phone until your case is called and it is your turn to speak. It is important to note that you must call fifteen (15) minutes prior to the scheduled hearing time to check in or there may be a delay in your case being heard.

Riverside Superior Court provides official court reporters for hearings on law and motion matters only for litigants who have been granted fee waivers and only upon their timely request. (See General Administrative Order No. 2021-19-1) Other parties desiring a record of the hearing must retain a reporter pro tempore.

1.

CASE #	CASE NAME	HEARING NAME
CVRI2402140	COUNTY OF RIVERSIDE ON BEHALF OF RIVERSIDE UNIVERSITY HEALTH SYSTEM VS AETNA HEALTH OF CALIFORNIA, INC.	MOTION FOR RACHEL LEFF BLUMBERG TO APPEAR AS COUNSEL PRO HAC VICE FOR DEFENDANTS AS TO AETNA HEALTH OF CALIFORNIA, INC., AETNA HEALTH AND LIFE INSURANCE COMPANY, AETNA LIFE INSURANCE COMPANY

Tentative Ruling:

California Business and Professions Code §6125 provides that only active members of the California State Bar shall practice law in this state. California Rule of Court 9.40 allows state courts to give permission for out-of-state attorneys who are not licensed in California to appear on behalf of a party in a particular case as counsel *pro hac vice*. The court can only permit appearances that are made in association with an active California State Bar member who acts as the attorney of record for the party.

CRC 9.40 requires that an application to appear *pro hac vice* be made in writing and be verified. The application must state the applicant attorney's office and residence addresses; the courts to which the attorney has been admitted to practice and the dates of admission; that the attorney is a member in good standing in those courts; that the attorney is not currently suspended or disbarred in any court; the title of the court and cause in which the attorney has filed an application to appear *pro hac vice* in California within the preceding two years, the date of each application, and whether or not it was granted; and the name, address, and telephone number of the active member of the State Bar of California who is attorney of record. No person is eligible to appear as counsel *pro hac vice* if they are a resident of California; are regularly employed in California; or are regularly engaged in substantial business, professional, or other activities in California.

The Application to appear *pro hac vice* must be served on the San Francisco office of the State Bar of California, which must also be paid a fee to defray administration expenses. Absent special circumstances, repeated appearances by any attorney under the Rule is a cause for denial of an application (*Walter E. Heller Western, Inc. vs. Superior Court (County of Los Angeles)* (1980) 111 Cal. App. 3d 706, 710). While appearing *pro hac vice*, an out-of-state attorney submits to the jurisdiction of state courts regarding state laws governing attorney conduct to the same extent as a California State Bar member. A trial court's inherent powers include the authority to revoke an attorney's *pro hac vice* status when that attorney has engaged in conduct that would be sufficient to disqualify a California attorney (*Sheller vs. Superior Court of Los Angeles County* (2008) 158 Cal. App. 4th 1697, 1716). All requirements of CRC 9.40 appear to have been met; the Court approves the application of Rachel Leff Blumberg to appear Pro Hac Vice. Submitted order has been signed by the Court.

2.

CASE #	CASE NAME	HEARING NAME
CVRI2406527	PATERSON VS MONRO, INC.	MOTION FOR SUMMARY JUDGMENT

Tentative Ruling:

Moving party: Defendants Monroe, Inc. and Carlos Aguirre

Non-Opposing party: Plaintiff Brittany Paterson

This is a negligence action arising out of a motor vehicle accident. On November 15, 2024, Plaintiff Brittany Paterson (“Plaintiff”) filed a Complaint against Defendants Monroe, Inc. (“Monro”) and Carlos Aguirre (“Aguirre”) (together “Defendants”) for negligence and punitive damages. In the Complaint, Plaintiff alleges that she had her vehicle serviced at Tire Choice Auto Service Centers (“Tire Choice”), owned by Monro, and while there, Defendants negligently and carelessly serviced and repaired her vehicle such that the brake line was not reattached to the brakes after the service. (Complaint at ¶ GN-1.) As a result, when Plaintiff was driving home on the freeway after picking up her vehicle from Tire Choice, her brakes did not work, forcing her to use her emergency brake and causing injuries and damages. (*Id.*)

Defendants now move for summary judgment, arguing that Plaintiff has no evidence that Defendants were negligent in servicing her vehicle or caused her injuries, and no evidence that Aguirre acted with malice, fraud, or oppression.

EVIDENCE SUPPORTING MOTION

Decl. of Shane M. Hoover (“Hoover Decl.”), which attaches:

- Complaint;
- Defendants’ service records for Plaintiff’s vehicle;
- Decl. of Carlos Aguirre (“Aguirre Decl.”);
- The pertinent portions of the deposition of Brittany Paterson (“Paterson Deposition”);
- Excerpts from Aguirre’s responses to Plaintiff’s SPROGs;
- Excerpts from Monro’s responses to Plaintiff’s SPROGs;
- Excerpts from Plaintiff’s responses to Monro’s SPROGs;
- Plaintiff’s document production;
- Additional service records; and
- Decl. of Vincent Lavis (“Lavis Decl.”)

LEGAL ANALYSIS

A. Standard

Summary judgment is granted when a moving party establishes the right to entry of judgment as a matter of law. (C.C.P. § 437c(c).) A defendant moving for summary judgment bears the initial burden of proving that there is no merit to a cause of action by showing that one or more elements of the cause of action cannot be established or that there is a complete defense to that cause of action. (C.C.P. § 437c(p)(2); *Cucuzza v. City of Santa Clara* (2002) 104 Cal.App.4th 1031, 1037.) Importantly, a moving defendant establishes a right to summary judgment by showing that the plaintiff lacks the evidence to support at least one element of the cause(s) of action pleaded. (*Cole v. Town of Los Gatos* (2012) 205 Cal.App.4th 749, 756. See also *Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 855.)

Once the defendant has made such a showing, the burden shifts to the plaintiff to show that a triable issue of one or more material facts exists as to that cause of action or as to a defense to the cause of action. (*Aguilar, supra*, 25 Cal.4th at 849.) The opposing party may not rely upon the allegations or denials in its pleadings, but must “set forth the specific facts showing that a triable issue of material fact exists.” (C.C.P. § 437c(p)(2).) Claims and theories not supported by admissible evidence do not raise triable issues of fact. (*Rochlis v. Walt Disney Co.* (1993) 19 Cal.App.4th 201, 219, disapproved on another ground in *Turner v. Anheuser–Busch, Inc.* (1994) 7 Cal.4th 1238.) However, while summary judgment is no longer considered a “disfavored” procedure, the moving party’s evidence must be strictly construed, while the opposing party’s evidence must be liberally construed. (*Binder v. Aetna Life Ins. Co.* (1999) 75 Cal.App.4th 832, 838.) If the plaintiff does not meet his burden of establishing a triable issue of material fact, summary judgment in favor of the defendant is appropriate.

B. The Motion is Granted

Plaintiff asserts one cause of action for negligence. To maintain a cause of action for negligence, the plaintiff must show: (1) a legal duty to use due care; (2) breach of such duty; (3) the breach was the proximate or legal cause of resulting injuries. (*Ladd v. County of San Mateo* (1996) 12 Cal.4th 913, 917.) Without a duty of care owed by the alleged wrongdoer to the person injured, no negligence is established. (*Jean Hamilton v. Gage Bowl, Inc.* (1992) 6 Cal.App.4th 1706, 1711.) A moving defendant establishes a right to summary judgment by showing that the plaintiff lacks the evidence to sustain one or more elements of the cause of action pleaded, including causation. (*Cole v. Town of Los Gatos* (2012) 205 Cal.App.4th 749, 756; See also, *Aguilar, supra*, 25 Cal.4th at 855.)

In the present case, Defendants present evidence of the following: Plaintiff’s vehicle was towed to Tire Choice on December 4, 2023 for repairs to extensive damage to the driver’s side and a cracked front strut; upon inspection of the vehicle, Defendants observed that the front driver’s side brake line was outside of the mounting bracket on the front strut and the brake shield was bent, but there was no visible damage to the

brake line; Defendants made all repairs to the vehicle and thereafter properly secured the driver's side front brake line to the appropriate bracket such that the brake line was not in contact with the tire; Defendants did not remove, detach, or manipulate the brake line other than to secure it into the mounting bracket; before returning the vehicle to Plaintiff, Acuirre test drove the vehicle for three miles, reaching highway speeds of 65 mph, and had no issues with the brakes; while Plaintiff claims the vehicle was leaking brake fluid when she picked it up from Tire Choice, she testified in deposition that she did not observe any leaking fluid; Plaintiff made at least one stop at a traffic light after picking up her vehicle before reaching highway speeds, and the brakes were working properly at that time; and Plaintiff is unaware of any Tire Choice employee having knowledge of any problem with her brakes when she picked up the vehicle. (UMF ## 1-6, 12, 14, 16-17.) This evidence is sufficient to show that Plaintiff cannot establish causation for the incident.

The burden then shifts to Plaintiff to establish a triable issue of material fact regarding causation. "[P]roof of causation cannot be based on mere speculation, conjecture and inferences drawn from other inferences to reach a conclusion unsupported by any real evidence." (*Padilla v. Rodas* (2008) 160 Cal.App.4th 742, 752; see also, *Ortega v. Kmart Corp.* (2001) 26 Cal.4th 1200, 1205-06 (*quoting* Prosser & Keaton, Torts (5th Ed. 1984), § 41) ["The plaintiff must introduce evidence which affords a reasonable basis for the conclusion that it is more likely than not that the conduct of the defendant was a cause in fact of the result. A mere possibility of such causation is not enough; and when the matter remains one of pure speculation or conjecture, or the probabilities are at best evenly balanced, it becomes the duty of the court to direct a verdict for the defendant"].)

As Plaintiff did not oppose the motion, she fails to present the necessary evidence to create a triable issue of material fact as to causation. Accordingly, the motion is granted.

The motion for summary judgment is Granted. The Court enters summary judgment in favor of Defendants.

3.

CASE #	CASE NAME	HEARING NAME
CVRI2500474	ANDERSON VS BURKS	MOTION FOR LEAVE TO FILE CROSS COMPLAINT

Tentative Ruling:

This motion is unopposed. Accordingly, the motion for leave to file a cross complaint is granted. Moving party is to give notice of ruling within 10 days of this order. Moving party is ordered to file its cross complaint within 10 days of this order.

4.

CASE #	CASE NAME	HEARING NAME
CVRI2507384	MADELINE FOX VS COUNTY OF RIVERSIDE	DEMURRER – CITY OF BEAUMONT

Tentative Ruling:

Moving party: Defendant City of Beaumont

Responding party: Plaintiffs Madeline Fox, via GaL Melissa Fox, Lauren Hinkley, individually and as Successor-in-Interest to Gavin Hinkley, Cory Hinkley, individually and as Successor-in-Interest to Gavin Hinkley, and the Estate of Gavin Hinkley through Successors-in-Interest Lauren Hinkley and Cory Hinkley

This is a wrongful death action filed December 29, 2025 by Plaintiffs Madeline Fox, via GaL Melissa Fox; Lauren Hinkley; Cory Hinkley, and the Estate of Gavin Hinkley against Defendants County of Riverside, Glynn Wilburn, Southern California Edison Company, City of Beaumont, City of Calimesa, CalTrans, and American Medical Response of Inland Empire alleging 8 causes of action for 1) negligence, 2) dangerous condition of public property, 3) negligence, 4) negligence-failure to protect/voluntary undertaking, 5) negligence, 6) bad faith/gross negligence in emergency dispatch, 7) negligence, and 8) survival action.

On April 30, 2026, Plaintiffs filed a First Amended Complaint alleging 7 causes of action for 1) negligence, 2) dangerous condition of public property, 3) negligence, 4) negligence-failure to protect/voluntary undertaking, 5) negligence, 6) bath faith/gross negligence in emergency dispatch, and 7) wrongful death. Thereafter, CalTrans was dismissed by Plaintiffs. The name of Defendant American Medical was corrected to American Medical Response of Southern California.

Defendant City of Beaumont demurs to the 4th and 6th causes of action in Plaintiffs' FAC on the grounds that they fail to state facts sufficient to constitute a cause of action against City. In particular, City asserts that the claims fail to identify any statute giving rise to a mandatory duty that would support liability against the City. The FAC names City of Beaumont in the 2nd (dangerous condition of public property), 4th, 6th and 7th (wrongful death) causes of action.

In opposition, Plaintiffs assert that the claims are properly pled sufficient to survive demurrer. Plaintiffs assert that Gov. Code sections 815.2(a), 815.4 and/or 835 provide liability against the City and is not immune under either section 815.2(b) or Health & Safety Code section 1799.107(a) because the conduct for which it is liable was performed in bad faith and in a grossly negligent manner. Next, Plaintiffs assert that the 4th cause of action for negligent failure to protect/voluntary undertaking survives demurrer as City had a duty arising from a special relationship with Plaintiffs arising out of the City's conduct and its creation of the peril that led to their need for medical assistance. Plaintiffs further assert that the allegations of gross negligence are

adequately pled as they pled specific ultimate facts and bad faith and whether the conduct was grossly negligent is a question of degree for the trier of fact. Plaintiffs assert that City's reliance on *Eastburn* is misguided and *Arista* and *Wright* confirm Plaintiffs' ultimate facts of gross negligence survive demurrer. Lastly, as to the 6th cause of action, Plaintiffs assert it alleges sufficient facts of bad faith and gross negligence in emergency dispatch to survive demurrer.

In reply, City asserts that Plaintiffs heavily rely on the improper declaration of their counsel, Robert B. Reagan, to describe additional facts not contained in the First Amended Complaint. The Court will not consider the additional facts for anything other than the fact that Plaintiffs could potentially plead additional facts, but given this is the first demurrer to be considered the court already leans toward the provision of sustained with leave to amend.

Otherwise, City asserts that Plaintiffs concede the deficiencies in the 4th and 6th causes of action. City asserts that Plaintiffs cannot allege a special relationship giving rise to a duty by the City to provide aid. Further, City asserts that the FAC fails to allege facts that City created the peril and therefore had a duty to provide aid. Next, City asserts that *Arista* and *Wright* do not establish the sufficiency of Plaintiffs' gross negligence allegations. City also asserts that the question of whether the allegations of gross negligence are sufficient is a question of law for the court. As to the 6th cause of action, City reasserts that it fails for lack of specificity.

The FAC alleges in pertinent part as follows:

On September 6, 2025, Riverside County Sheriff's Deputy WILBURN was driving a patrol vehicle in the course and scope of his employment with the County of Riverside. Wilburn was traveling at or in excess of 71.9 miles per hour, approaching a red light, when he crashed into a vehicle that was lawfully negotiating a left turn, killing the driver Gavin Hinckley and leaving Madeline Fox suffering life-threatening permanent injuries. The accident occurred at the intersection of Cherry Valley Boulevard and Roberts Street in the County of Riverside.

The location of the accident was owned or controlled by County, City of Beaumont and the City of Calimesa and was in a dangerous condition.

After the accident, City of Beaumont took affirmative steps to divert life-saving medical care away from Gavin and Madeline. By voluntarily undertaking the responsibilities to manage, control, and secure the scene of the collision, City of Beaumont created a special relationship with Madeline and Gavin giving rise to a duty of care to perform life-saving medical care with reasonable diligence and without increasing the risk of harm to them.

City of Beaumont owed a duty to Madeline and Gavin to exercise reasonable care in the receipt, processing, and dispatch of emergency services. After the collision, City of Beaumont, acted in bad faith and/or with gross negligence in the dispatch of emergency personnel to the scene. Despite the severe, life-threatening injuries suffered by Madeline and Gavin City of Beaumont demonstrated an extreme departure from the

standard of care by failing to properly categorize the severity of their medical emergency, failing to follow established protocols, failing to prioritize medical aid to them over Wilburn's less severe injuries and other non-emergency matters, and unreasonably delaying the dispatch of advanced life support personnel. This conduct constituted a systemic and reckless disregard for the lives of Madeline and Gavin and were a substantial factor and the legal and proximate cause of Madeline and Gavin's injuries.

Evidentiary Issues

Declaration of Attorney Robert Reagan:

Plaintiffs submitted the Declaration of Attorney Robert Reagan in support of its opposition. This declaration seeks to improperly submit evidence. The hearing on demurrer may not be turned into a contested evidentiary hearing through the guise of having the court take judicial notice of affidavits, declarations, depositions, and other such material which was filed on behalf of the adverse party and which purports to contradict the allegations and contentions of the plaintiff." (*Del E. Webb Corp. v. Structural Materials Co.* (1981) 123 Cal.App.3d 593, 605; *Joslin v. H.A.S. Ins. Brokerage* (1986) 184 Cal.App.3d 369, 374-375.) Accordingly, the court strikes the declaration pursuant to its discretion under CCP section 436(b).

Analysis

To withstand a demurrer the complaint must contain "a statement of the facts constituting the cause of action, in ordinary and concise language." (C.C.P. § 425.10.) "[T]he complaint need only allege facts sufficient to state a cause of action, each evidentiary fact that might eventually form part of the plaintiff's proof need not be alleged. (*C.A. v. William S. Hart Union High School Dist.* (2012) 53 Cal.4th 861, 872.) Generally a plaintiff need only plead facts necessary "to acquaint a defendant with the nature, source and extent of his claims." (*Doe v. City of Los Angeles* (2007) 42 Cal.4th 531, 549-550.) On demurrer the court must assume the truth of all facts properly pled, facts that may be implied or reasonably inferred from the facts expressly alleged, and evidentiary facts that are in exhibits attached to the complaint. (*Evans v. City of Berkeley* (2006) 38 Cal.4th 1, 6.) The court's task is to treat well-pleaded allegations in the complaint as true and determine whether the complaint states facts sufficient to constitute a cause of action. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.) "

In evaluating a demurrer, the court gives the pleading a reasonable interpretation by reading it as a whole and all of its parts in their context. (*Moore v. Regents of University of California* (1990) 51 Cal.3d 120, 125.) In ruling on a demurrer, the court may take into account only the challenged pleading and matters subject to judicial notice under E.C. §§451, 452. (C.C.P. §§430.30(a), 430.70; *Gould v. Maryland Sound Indus., Inc.* (1995) 31 Cal.App.4th 1137, 1144.) The sole issue raised by a demurrer is whether the facts pleaded state a valid cause of action, not whether they are true. Thus, no matter how unlikely or improbable, the plaintiff's allegations must be accepted as

true for the purposes of the demurrer. (*Requa v. Regents of University of California* (2012) 213 Cal.App.4th 213, 223 (citing *Del E. Webb Corp. v. Structural Material Co.* (1981) 123 Cal.App.3d 593, 604).) However, a demurrer does not admit contentions, deductions or conclusions of fact or law. (*Daar v. Yellow Cab Company* (1967) 67 Cal.2d 695, 713.) If the complaint fails to state a cause of action, the court must grant the plaintiff leave to amend if there is a reasonable possibility that the defect can be cured by amendment. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.)

4th Cause of Action for Negligent Failure to Protect/Voluntary Undertaking (against both County and Wilburn): The elements of a cause of action for negligence are (1) the existence of a duty to exercise due care; (2) breach of that duty; (3) causation; and (4) damages. (*Merrill v. Navegar, Inc.* (2001) 26 Cal.4th 465, 500.) “ ‘Although the legal conclusion that ‘a duty’ exists is neither necessary nor proper in a complaint, facts which cause it to arise (or from which it is ‘inferred’) are essential to the cause of action.’ [Citations.] A complaint which lacks facts to show that a duty of care was owed is fatally defective. [Citation.]” (*Wise v. Superior Court* (1990) 222 Cal.App.3d 1008, 1013.)

Ultimately, this claim is based on a voluntary undertaking which is based on the premise that City did not have a duty to handle the collision scene, but once they did, they owed a duty, based on a special relationship, not to place persons in peril or increase the risk of harm. (See *Williams v. State of California* (1983) 34 Cal.3d 18, 24.) The FAC does not allege that anything City did at the collision scene created a special relationship that created a duty to affirmatively act to assist or protect Gavin or Madeline. **Accordingly, the court sustains the demurrer to the 4th cause of action with 21 days leave to amend.**

6th Cause of Action for Bad Faith/Gross Negligence in Emergency Dispatch (against County): Pursuant to California Health and Safety Code Section 1799.107(b), public entities enjoy qualified immunity when it comes to emergency dispatch services. In order for plaintiffs to overcome this statutory immunity, plaintiffs must plead specific factual allegations that constitute gross negligence – defined as “the want of even scant care or an extreme departure from the ordinary standard of conduct.” (*City of Santa Barbara v. Superior Court* (2007) 41 Cal.4th 747; *Eastburn v. Regional Fire Protection Authority* (2003) 31 Cal.4th 1175.) Gross negligence is a significantly higher standard than ordinary negligence and requires that the conduct fall “greatly below the standard established by law for the protection of others.” (*City of Santa Barbara v. Superior Court* (2007) 41 Cal.4th 747.) California Courts have held that gross negligence requires more than a procedural misstep, miscommunication or delay. It requires conduct that is egregious in nature, conduct that is done deliberately or with reckless disregard. Mere errors in judgment, protocol deviations, and ordinary dispatch deficiencies do not meet the heightened bar of gross negligence. (See *Eastburn v. Regional Fire Protection Authority* (2003) 31 Cal.4th 1175; *Arista v. County of Riverside* (2018) 29 Cal.App.5th 1051; *Wright v. City of Los Angeles* (1990) 219 Cal.App.3d 318.) The FAC does not state sufficient facts to state a cause of action for bad faith/gross negligence in emergency dispatch. **Accordingly, the court sustains the demurrer to the 6th cause of action with 21 days leave to amend.**

5.

CASE #	CASE NAME	HEARING NAME
CVRI2507384	MADELINE FOX VS COUNTY OF RIVERSIDE	DEMURRER – COUNTY OF RIVERSIDE

Tentative Ruling:

Moving party: Defendants County of Riverside and Glynn Wilburn

Responding party: Plaintiffs Madeline Fox, via GaL Melissa Fox, Lauren Hinkley, individually and as Successor-in-Interest to Gavin Hinkley, Cory Hinkley, individually and as Successor-in-Interest to Gavin Hinkley, and the Estate of Gavin Hinkley through Successors-in-Interest Lauren Hinkley and Cory Hinkley

This is a wrongful death action filed December 29, 2025 by Plaintiffs Madeline Fox, via GaL Melissa Fox; Lauren Hinkley; Cory Hinkley, and the Estate of Gavin Hinkley against Defendants County of Riverside, Glynn Wilburn, Southern California Edison Company, City of Beaumont, City of Calimesa, CalTrans, and American Medical Response of Inland Empire alleging 8 causes of action for 1) negligence, 2) dangerous condition of public property, 3) negligence, 4) negligence-failure to protect/voluntary undertaking, 5) negligence, 6) bad faith/gross negligence in emergency dispatch, 7) negligence, and 8) survival action.

On April 30, 2026, Plaintiffs filed a First Amended Complaint alleging 7 causes of action for 1) negligence, 2) dangerous condition of public property, 3) negligence, 4) negligence-failure to protect/voluntary undertaking, 5) negligence, 6) bath faith/gross negligence in emergency dispatch, and 7) wrongful death. Thereafter, CalTrans was dismissed by Plaintiffs. The name of Defendant American Medical was corrected to American Medical Response of Southern California.

Defendants County of Riverside and Glynn Wilburn demur to the FAC's 4th and 6th causes of action. Defendants assert that (1) Plaintiffs fail to plead facts sufficient to constitute a cause of action for Bad Faith/Gross Negligence in Emergency Dispatch Services against Defendant County of Riverside; and (2) Plaintiffs fail to state a claim for Negligent Failure to Protect/Voluntary Undertaking against Defendants.

In opposition, Plaintiffs assert that both causes of action are adequately pled. Plaintiffs sufficiently plead each element of Bad Faith /Gross Negligence in Emergency Dispatch, including duty, breach, causation, and damages as the FAC alleges that County demonstrated an extreme departure from the standard of care by failing to properly categorize the severity of MADELINE and Gavin's medical emergency, failing to follow established protocols, failing to prioritize medical aid to MADELINE and Gavin over WILBURN's less severe injuries and other non-emergency matters, and unreasonably delaying the dispatch of advanced life support personnel. The conduct of these Defendants as described herein constituted a systemic and reckless disregard for

the lives of MADELINE and Gavin. Further, Plaintiffs assert that Defendants' reliance on *Eastburn* is misguided and *Arista* and *Wright* confirm Plaintiffs' ultimate facts of gross negligence survive demurrer.

As to the 4th cause of action for negligent failure to protect/voluntary undertaking, Plaintiffs assert that the claim is sufficiently pled as it pleads was a special relationship giving rise to a duty of care to perform the undertakings with reasonable diligence and without increasing the risk of harm to victims. Plaintiffs assert that a special relationship existed because Defendants caused the crash.

In reply, Defendants assert that despite the new factual allegations in their opposition, the claim for bad faith, gross negligence in emergency dispatch is still insufficient. Plaintiff's Complaint does not contain sufficient allegations demonstrating that Defendants' actions constituted "the want of even scant care or an extreme departure from the ordinary standard of conduct" as required in bad faith/gross negligence in emergency dispatch causes of action. Plaintiffs attempt to argue that the question of Defendants' conduct is a question of fact for a jury to decide on. However, this argument fails to consider that certain factual allegations must be pleaded in order for a bad faith/gross negligence cause of action to reach a jury. Plaintiffs must still allege that Defendants committed acts possibly definable as gross negligence, ones that meet the heightened bar as previously established. Plaintiffs' Opposition cannot salvage their negligent failure to protect/voluntary undertaking claim because no special relationship has been adequately pled. As Defendants correctly noted in their Demurrer, Plaintiffs are attempting to establish a special relationship through the harm's way exception. Just as their Opposition to the sixth cause of action, Plaintiffs again try to include additional facts that are nowhere mentioned in their Complaint to support their argument.

The FAC alleges in pertinent part as follows:

On September 6, 2025, Riverside County Sheriff's Deputy WILBURN was driving a 2020 Ford Explorer patrol vehicle, bearing California license plate number 1585138 ("Patrol Vehicle") in the course and scope of his employment with the County of Riverside. Wilburn was traveling at or in excess of 71.9 miles per hour, approaching a red light, when he crashed into the left side of the 2018 Tesla Model 3 that was lawfully negotiating a left turn, killing the driver and leaving Madeline suffering life-threatening permanent injuries.

County and Wilburn while acting within the course and scope of their employment, owed a duty to all reasonably foreseeable people, including Plaintiffs, to exercise reasonable care and/or to refrain from bad faith and gross negligence in implementing basic operational policies and voluntarily undertaking to manage, assume control of, and secure the scene of the Subject Collision. Each of them, carelessly, negligently, recklessly, and/or in bad faith or with gross negligence voluntarily undertook to manage, assume control of, and/or secure the scene of the collision took affirmative steps to divert life-saving medical care away from Gavin and MADELINE. By voluntarily undertaking these responsibilities to manage, control, and secure the scene of the Subject Collision, RIVERSIDE, WILBURN, BEAUMONT, CALIMESA, and DOES 1

through 100, inclusive, created a special relationship with MADELINE and Gavin, giving rise to a duty of care to perform these undertakings with reasonable diligence and without increasing the risk of harm to the victims.

County acted in bad faith and/or with gross negligence in the dispatch of emergency personnel to the scene of the Subject Collision. Despite the severe, life-threatening injuries suffered by MADELINE and Gavin in the Subject Collision, County demonstrated an extreme departure from the standard of care by failing to properly categorize the severity of MADELINE and Gavin's medical emergency, failing to follow established protocols, failing to prioritize medical aid to MADELINE and Gavin over WILBURN's less severe injuries and other non-emergency matters, and unreasonably delaying the dispatch of advanced life support personnel. The conduct of these Defendants as described herein constituted a systemic and reckless disregard for the lives of MADELINE and Gavin.

Procedural Issues

Meet and Confer Requirements:

CCP §430.41(a) states that "[b]efore filing a demurrer pursuant to this chapter, the demurring party shall meet and confer in person or by telephone with the party who filed the pleading that is subject to demurrer for the purpose of determining whether an agreement can be reached that would resolve the objections to be raised in the demurrer." (CCP §430.41(a).) Further, the moving party is required to submit a declaration that "the party who filed the pleading subject to demurrer failed to respond to the meet and confer request of the demurring party or otherwise failed to meet and confer in good faith." (CCP §430.41(a)(3)(B).)

The declaration submitted with the moving papers indicates that Defendants' counsel made several attempts to meet and confer, but that Plaintiffs' counsel failed to respond. The Court admonishes counsel for Plaintiff, Robert Reagan, and reminds counsel that the court could consider an OSC re: sanctions as to Plaintiffs' counsel for failure to respond to good faith meet and confer attempts.

Nevertheless, the Court will reach the merits of the demurrer.

Evidentiary Issues

Declaration of Attorney Robert Reagan:

Plaintiffs submitted the Declaration of Attorney Robert Reagan in support of its opposition. This declaration seeks to improperly submit evidence. The hearing on demurrer may not be turned into a contested evidentiary hearing through the guise of having the court take judicial notice of affidavits, declarations, depositions, and other such material which was filed on behalf of the adverse party and which purports to contradict the allegations and contentions of the plaintiff." (*Del E. Webb Corp. v.*

Structural Materials Co. (1981) 123 Cal.App.3d 593, 605; *Joslin v. H.A.S. Ins. Brokerage* (1986) 184 Cal.App.3d 369, 374-375.) Accordingly, the court strikes the declaration, pursuant to its discretion under CCP section 436(b).

Analysis

To withstand a demurrer the complaint must contain “a statement of the facts constituting the cause of action, in ordinary and concise language.” (C.C.P. § 425.10.) “[T]he complaint need only allege facts sufficient to state a cause of action, each evidentiary fact that might eventually form part of the plaintiff’s proof need not be alleged. (*C.A. v. William S. Hart Union High School Dist.* (2012) 53 Cal.4th 861, 872.) Generally a plaintiff need only plead facts necessary “to acquaint a defendant with the nature, source and extent of his claims.” (*Doe v. City of Los Angeles* (2007) 42 Cal.4th 531, 549-550.) On demurrer the court must assume the truth of all facts properly pled, facts that may be implied or reasonably inferred from the facts expressly alleged, and evidentiary facts that are in exhibits attached to the complaint. (*Evans v. City of Berkeley* (2006) 38 Cal.4th 1, 6.) The court’s task is to treat well-pleaded allegations in the complaint as true and determine whether the complaint states facts sufficient to constitute a cause of action. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.) “

In evaluating a demurrer, the court gives the pleading a reasonable interpretation by reading it as a whole and all of its parts in their context. (*Moore v. Regents of University of California* (1990) 51 Cal.3d 120, 125.) In ruling on a demurrer, the court may take into account only the challenged pleading and matters subject to judicial notice under E.C. §§451, 452. (C.C.P. §§430.30(a), 430.70; *Gould v. Maryland Sound Indus., Inc.* (1995) 31 Cal.App.4th 1137, 1144.) The sole issue raised by a demurrer is whether the facts pleaded state a valid cause of action, not whether they are true. Thus, no matter how unlikely or improbable, the plaintiff’s allegations must be accepted as true for the purposes of the demurrer. (*Requa v. Regents of University of California* (2012) 213 Cal.App.4th 213, 223 (citing *Del E. Webb Corp. v. Structural Material Co.* (1981) 123 Cal.App.3d 593, 604).) However, a demurrer does not admit contentions, deductions or conclusions of fact or law. (*Daar v. Yellow Cab Company* (1967) 67 Cal.2d 695, 713.) If the complaint fails to state a cause of action, the court must grant the plaintiff leave to amend if there is a reasonable possibility that the defect can be cured by amendment. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.)

4th Cause of Action for Negligent Failure to Protect/Voluntary Undertaking (against both County and Wilburn): The elements of a cause of action for negligence are (1) the existence of a duty to exercise due care; (2) breach of that duty; (3) causation; and (4) damages. (*Merrill v. Navegar, Inc.* (2001) 26 Cal.4th 465, 500.) “ ‘Although the legal conclusion that ‘a duty’ exists is neither necessary nor proper in a complaint, facts which cause it to arise (or from which it is ‘inferred’) are essential to the cause of action.’ [Citations.] A complaint which lacks facts to show that a duty of care was owed is fatally defective. [Citation.]” (*Wise v. Superior Court* (1990) 222 Cal.App.3d 1008, 1013.)

The FAC alleges that as Wilburn caused the collision a special relationship existed between Wilburn/County and Gavin and Madeline such that when they voluntarily undertook to manage the collision scene, they owed a duty to exercise due care in handling the collision site. Plaintiffs assert that none of the cases cited by Defendants is applicable because they did not involve cases where the peril presented was caused by the officer. However, Plaintiffs did not cite any authority that supports finding a special relationship where the peril was caused by the officer, after which the officer voluntarily assumed to handle the collision scene.

Ultimately, this claim is based on a voluntary undertaking which is based on the premise that Wilburn/County did not have a duty to handle the collision scene, but once they did, they owed a duty, based on a special relationship, not to place persons in peril or increase the risk of harm. (See *Williams v. State of California* (1983) 34 Cal.3d 18, 24.) The FAC does not allege that anything Wilburn/County did at the collision scene created a special relationship that created a duty to affirmatively act to assist or protect Gavin or Madeline. Accordingly, the court sustains the demurrer to the 4th cause of action with 21 days leave to amend.

6th Cause of Action for Bad Faith/Gross Negligence in Emergency Dispatch (against County): Pursuant to California Health and Safety Code Section 1799.107(b), public entities enjoy qualified immunity when it comes to emergency dispatch services. In order for plaintiffs to overcome this statutory immunity, plaintiffs must plead specific factual allegations that constitute gross negligence – defined as "the want of even scant care or an extreme departure from the ordinary standard of conduct." (*City of Santa Barbara v. Superior Court* (2007) 41 Cal.4th 747; *Eastburn v. Regional Fire Protection Authority* (2003) 31 Cal.4th 1175.) Gross negligence is a significantly higher standard than ordinary negligence and requires that the conduct fall "greatly below the standard established by law for the protection of others." (*City of Santa Barbara v. Superior Court* (2007) 41 Cal.4th 747.) California Courts have held that gross negligence requires more than a procedural misstep, miscommunication or delay. It requires conduct that is egregious in nature, conduct that is done deliberately or with reckless disregard. Mere errors in judgment, protocol deviations, and ordinary dispatch deficiencies do not meet the heightened bar of gross negligence. (See *Eastburn v. Regional Fire Protection Authority* (2003) 31 Cal.4th 1175; *Arista v. County of Riverside* (2018) 29 Cal.App.5th 1051; *Wright v. City of Los Angeles* (1990) 219 Cal.App.3d 318.) The FAC does not state sufficient facts to state a cause of action for bad faith/gross negligence in emergency dispatch. Accordingly, the court sustains the demurrer to the 6th cause of action with 21 days leave to amend.

6.

CASE #	CASE NAME	HEARING NAME
CVRI2507384	MADELINE FOX vs COUNTY OF RIVERSIDE	DEMURRER – CITY OF CALIMESA

Tentative Ruling:

Moving party: Defendant City of Calimesa

Responding party: Plaintiffs Madeline Fox, via GaL Melissa Fox, Lauren Hinkley, individually and as Successor-in-Interest to Gavin Hinkley, Cory Hinkley, individually and as Successor-in-Interest to Gavin Hinkley, and the Estate of Gavin Hinkley through Successors-in-Interest Lauren Hinkley and Cory Hinkley

This is a wrongful death action filed December 29, 2025 by Plaintiffs Madeline Fox, via GaL Melissa Fox; Lauren Hinkley; Cory Hinkley, and the Estate of Gavin Hinkley against Defendants County of Riverside, Glynn Wilburn, Southern California Edison Company, City of Beaumont, City of Calimesa, CalTrans, and American Medical Response of Inland Empire alleging 8 causes of action for 1) negligence, 2) dangerous condition of public property, 3) negligence, 4) negligence-failure to protect/voluntary undertaking, 5) negligence, 6) bad faith/gross negligence in emergency dispatch, 7) negligence, and 8) survival action.

On April 30, 2026, Plaintiffs filed a First Amended Complaint alleging 7 causes of action for 1) negligence, 2) dangerous condition of public property, 3) negligence, 4) negligence-failure to protect/voluntary undertaking, 5) negligence, 6) bath faith/gross negligence in emergency dispatch, and 7) wrongful death. Thereafter, CalTrans was dismissed by Plaintiffs. The name of Defendant American Medical was corrected to American Medical Response of Southern California.

Defendant City of Calimesa demurs to the four causes of action alleged against them in the FAC, the 2nd, 4th, 6th, and 7th causes of action on the grounds that they are uncertain and/or fail to state sufficient facts to constitute a cause of action against them. City asserts that the dangerous condition of public property claim fails to allege any facts showing that the City owned or controlled the intersection or that any City employee created a dangerous condition or that City had notice of one, as distinct from the other public entities sued. As to the 4th cause of action, City asserts it is uncertain as it fails to identify any statute authorizing the claim sufficient to overcome the immunity provision of Gov. Code section 815. As to the 6th cause of action, City asserts it is uncertain as there is no statutory basis for the claim because health and Safety Code section 1799.107 immunizes the conduct absent facts showing bad faith or gross negligence as the FAC does not allege any act of any City employee that could give rise to vicarious liability. As to the 7th cause of action, City asserts it fails as it is wholly derivative of the other causes of action and alleges no independent statutory basis for the City's liability.

In opposition, Plaintiffs asserts that each of the claims are properly alleged with sufficient facts to survive demurrer. Plaintiffs assert that they adequately pled dispatch conduct, gross negligence and bad faith. Further, Plaintiffs assert that they properly alleged a special relationship duty, which was breached by City.

In reply, City asserts that the opposition improperly seeks to incorporate documents and facts outside the pleadings. Further, City asserts that the extrinsic evidence would not cure the FAC's defects. City asserts that the 6th cause of action still fails to identify any actionable City dispatch conduct. As to the 4th cause of action is a barred common-law theory as there is no claimed City employee liability.

Procedural Issues

Meet and Confer Requirements:

CCP §430.41(a) states that “[b]efore filing a demurrer pursuant to this chapter, the demurring party shall meet and confer in person or by telephone with the party who filed the pleading that is subject to demurrer for the purpose of determining whether an agreement can be reached that would resolve the objections to be raised in the demurrer.” (CCP §430.41(a).) Further, the moving party is required to submit a declaration that “the party who filed the pleading subject to demurrer failed to respond to the meet and confer request of the demurring party or otherwise failed to meet and confer in good faith.” (CCP §430.41(a)(3)(B).)

The declaration submitted with the moving papers indicates that Defendants’ counsel made several attempts to meet and confer, but that Plaintiffs’ counsel failed to respond.

The Court admonishes counsel for Plaintiff, Robert Reagan, and reminds counsel that the court could consider an OSC re: sanctions as to Plaintiffs’ counsel for failure to respond to good faith meet and confer attempts.

Evidentiary Issues

Declaration of Attorney Robert Reagan:

Plaintiffs submitted the Declaration of Attorney Robert Reagan in support of its opposition. This declaration seeks to improperly submit evidence. The hearing on demurrer may not be turned into a contested evidentiary hearing through the guise of having the court take judicial notice of affidavits, declarations, depositions, and other such material which was filed on behalf of the adverse party and which purports to contradict the allegations and contentions of the plaintiff.” (*Del E. Webb Corp. v. Structural Materials Co.* (1981) 123 Cal.App.3d 593, 605; *Joslin v. H.A.S. Ins. Brokerage* (1986) 184 Cal.App.3d 369, 374-375.) Accordingly, the court strikes the declaration pursuant to its discretion under CCP section 436(b).

The FAC alleges in pertinent part as follows:

On September 6, 2025, Riverside County Sheriff's Deputy WILBURN was driving a patrol vehicle in the course and scope of his employment with the County of Riverside. Wilburn was traveling at or in excess of 71.9 miles per hour, approaching a red light, when he crashed into the vehicle that was lawfully negotiating a left turn, killing the driver Gavin Hinckley and leaving Madeline Fox suffering life-threatening permanent injuries. The accident occurred at the intersection of Cherry Valley Boulevard and Roberts Street in the County of Riverside.

The location of the accident was owned or controlled by County, City of Beaumont and the City of Calimesa and was in a dangerous condition.

After the accident, City of Calimesa took affirmative steps to divert life-saving medical care away from Gavin and Madeline. By voluntarily undertaking the responsibilities to manage, control, and secure the scene of the collision, City of Calimesa created a special relationship with Madeline and Gavin giving rise to a duty of care to perform life-saving medical care with reasonable diligence and without increasing the risk of harm to them.

City of Calimesa owed a duty to Madeline and Gavin to exercise reasonable care in the receipt, processing, and dispatch of emergency services. After the collision, City of Calimesa, acted in bad faith and/or with gross negligence in the dispatch of emergency personnel to the scene. Despite the severe, life-threatening injuries suffered by Madeline and Gavin City of Calimesa demonstrated an extreme departure from the standard of care by failing to properly categorize the severity of their medical emergency, failing to follow established protocols, failing to prioritize medical aid to them over Wilburn's less severe injuries and other non-emergency matters, and unreasonably delaying the dispatch of advanced life support personnel. This conduct constituted a systemic and reckless disregard for the lives of Madeline and Gavin and were a substantial factor and the legal and proximate cause of Madeline and Gavin's injuries.

As a direct and legal result of the wrongful death of Gavin, the HINKLEYS have been deprived of the love, companionship, comfort, care, assistance, protection, affection, society, and moral support of their son, and have sustained other economic and non-economic damages available under California wrongful death law, including loss of financial support, loss of gifts and benefits, and loss of household services in an amount to be determined according to proof at the time of trial.

Analysis

To withstand a demurrer the complaint must contain "a statement of the facts constituting the cause of action, in ordinary and concise language." (C.C.P. § 425.10.) "[T]he complaint need only allege facts sufficient to state a cause of action, each evidentiary fact that might eventually form part of the plaintiff's proof need not be alleged. (*C.A. v. William S. Hart Union High School Dist.* (2012) 53 Cal.4th 861, 872.)

Generally a plaintiff need only plead facts necessary “to acquaint a defendant with the nature, source and extent of his claims.” (*Doe v. City of Los Angeles* (2007) 42 Cal.4th 531, 549-550.) On demurrer the court must assume the truth of all facts properly pled, facts that may be implied or reasonably inferred from the facts expressly alleged, and evidentiary facts that are in exhibits attached to the complaint. (*Evans v. City of Berkeley* (2006) 38 Cal.4th 1, 6.) The court’s task is to treat well-pleaded allegations in the complaint as true and determine whether the complaint states facts sufficient to constitute a cause of action. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.) “

In evaluating a demurrer, the court gives the pleading a reasonable interpretation by reading it as a whole and all of its parts in their context. (*Moore v. Regents of University of California* (1990) 51 Cal.3d 120, 125.) In ruling on a demurrer, the court may take into account only the challenged pleading and matters subject to judicial notice under E.C. §§451, 452. (C.C.P. §§430.30(a), 430.70; *Gould v. Maryland Sound Indus., Inc.* (1995) 31 Cal.App.4th 1137, 1144.) The sole issue raised by a demurrer is whether the facts pleaded state a valid cause of action, not whether they are true. Thus, no matter how unlikely or improbable, the plaintiff’s allegations must be accepted as true for the purposes of the demurrer. (*Requa v. Regents of University of California* (2012) 213 Cal.App.4th 213, 223 (citing *Del E. Webb Corp. v. Structural Material Co.* (1981) 123 Cal.App.3d 593, 604).) However, a demurrer does not admit contentions, deductions or conclusions of fact or law. (*Daar v. Yellow Cab Company* (1967) 67 Cal.2d 695, 713.) If the complaint fails to state a cause of action, the court must grant the plaintiff leave to amend if there is a reasonable possibility that the defect can be cured by amendment. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.)

A demurrer for uncertainty will be sustained only where the complaint is so bad that defendant *cannot reasonably respond*—i.e., he or she cannot reasonably determine what issues must be admitted or denied, or what counts or claims are directed against him or her. (*Khoury v. Maly's of Calif., Inc.* (1993) 14 Cal.App.4th 612, 616.) None of the challenged causes of action are uncertain.

2nd Cause of Action for Dangerous Condition of Public Property: The elements to establish a cause of action for dangerous condition of public property are: 1) the incident occurred on public property as defined in G.C. §830(c), 2) the property was in a dangerous condition at the time of the injury, 3) the injury was proximately caused by the dangerous condition, 4) the dangerous condition created a reasonably foreseeable risk of the kind of injury which was incurred, and 5) the public entity had actual or constructive notice under §835.2 a sufficient time prior to the injury to have taken measures to protect against the dangerous condition. (*Bonanno v. Central Contra Costa Transit Authority* (2003) 30 Cal.4th 139, 146; G.C. §835.)

Public property “means real or personal property owned or controlled by the public entity, but do not include easements, encroachments and other property that are located on the property of the public entity but are not owned or controlled by the public entity.” (Gov. Code §830(c).) “ ‘Dangerous condition means a condition of property that creates a substantial (a distinguished from a minor, trivial or insignificant) risk of injury when such property or adjacent property is used with due care in a manner in which it is reasonably foreseeable that it will be used.’ ” (Gov. Code §830(a).)

The FAC fails to set forth facts sufficient to constitute a dangerous condition of public property against City of Calimesa. Accordingly, the court sustains with 21 days leave to amend, as to the 2nd cause of action.

4th Cause of Action for Negligent Failure to Protect/Voluntary Undertaking (against both County and Wilburn): The elements of a cause of action for negligence are (1) the existence of a duty to exercise due care; (2) breach of that duty; (3) causation; and (4) damages. (*Merrill v. Navegar, Inc.* (2001) 26 Cal.4th 465, 500.) “ ‘Although the legal conclusion that ‘a duty’ exists is neither necessary nor proper in a complaint, facts which cause it to arise (or from which it is ‘inferred’) are essential to the cause of action.’ [Citations.] A complaint which lacks facts to show that a duty of care was owed is fatally defective. [Citation.]” (*Wise v. Superior Court* (1990) 222 Cal.App.3d 1008, 1013.)

Ultimately, this claim is based on a voluntary undertaking which is based on the premise that City did not have a duty to handle the collision scene, but once they did, they owed a duty, based on a special relationship, not to place persons in peril or increase the risk of harm. (See *Williams v. State of California* (1983) 34 Cal.3d 18, 24.) The FAC does not allege that anything City did at the collision scene created a special relationship that created a duty to affirmatively act to assist or protect Gavin or Madeline. Accordingly, the court sustains the demurrer to the 4th cause of action with 21 days leave to amend.

6th Cause of Action for Bad Faith/Gross Negligence in Emergency Dispatch (against County): Pursuant to California Health and Safety Code Section 1799.107(b), public entities enjoy qualified immunity when it comes to emergency dispatch services. In order for plaintiffs to overcome this statutory immunity, plaintiffs must plead specific factual allegations that constitute gross negligence – defined as “the want of even scant care or an extreme departure from the ordinary standard of conduct.” (*City of Santa Barbara v. Superior Court* (2007) 41 Cal.4th 747; *Eastburn v. Regional Fire Protection Authority* (2003) 31 Cal.4th 1175.) Gross negligence is a significantly higher standard than ordinary negligence and requires that the conduct fall “greatly below the standard established by law for the protection of others.” (*City of Santa Barbara v. Superior Court* (2007) 41 Cal.4th 747.) California Courts have held that gross negligence requires more than a procedural misstep, miscommunication or delay. It requires conduct that is egregious in nature, conduct that is done deliberately or with reckless disregard. Mere errors in judgment, protocol deviations, and ordinary dispatch deficiencies do not meet the heightened bar of gross negligence. (See *Eastburn v. Regional Fire Protection Authority* (2003) 31 Cal.4th 1175; *Arista v. County of Riverside* (2018) 29 Cal.App.5th 1051; *Wright v. City of Los Angeles* (1990) 219 Cal.App.3d 318.) The FAC does not state sufficient facts to state a cause of action for bad faith/gross negligence in emergency dispatch. Accordingly, the court sustains the demurrer to the 6th cause of action with 21 days leave to amend.

7th Cause of Action for Wrongful Death: A cause of action for wrongful death is a statutory claim that compensates specified heirs of the decedent for losses suffered as a result of a decedent’s death. (CCP §§ 377.60-377.62; *LAOSD Asbestos Cases* (2018)

28 Cal.App.5th 862, 872.) The elements of a wrongful death claim are: (1) a tort (negligence or other wrongful act); (2) resulting death of another person; and (3) damages, consisting of the pecuniary loss suffered by the heirs. (*Lattimore v. Dickey* (2015) 239 Cal.App.4th 959, 968; *Quiroz v. Seventh Ave. Center* (2006) 140 Cal.App.4th 1256, 1263.) Facts in support of each of the requirements of a statute upon which a cause of action is based must be pleaded. (*Baskin v. Hughes Realty, Inc.* (2018) 25 Cal.App.5th 184, 207.)

The FAC fails to state a claim for a tort upon which this claim can stand. Accordingly, the court sustains with 21 days leave to amend as to the 7th cause of action.